

Macromedia v. Adobe Systems Incorporated.

Decided Aug 1, 2002

Case No. C 01-3940 SI

August 1, 2002

Charlene M. Morrow, FENWICK WEST LLP,
Palo Alto, CA, Attorneys for Plaintiff
Macromedia, Inc.

David Barkan, FISH RICHARDSON, Redwood
City, CA, Attorney for Defendant Adobe Systems
Incorporated

STIPULATION OF DISMISSAL WITH PREJUDICE AND ORDER THEREON

SUSAN ILLSTON, United States District Judge

This matter having come before the Court on the pleadings of record and it being represented that plaintiff Macromedia, Inc. ("Macromedia") and defendant Adobe Systems Incorporated ("Adobe") have reached final agreement on settlement of the claims made in this action and, based upon the agreement, consent and approval of Adobe and Macromedia (collectively "the Parties"), IT IS HEREBY STIPULATED as follows:

1. This Court has personal jurisdiction over the Parties and over the subject matter of this action;

2. All claims and all counterclaims in this action brought by Macromedia, Inc. against Adobe Systems Incorporated, or by Adobe Systems Incorporated against Macromedia, Inc., are hereby dismissed with prejudice pursuant to [Fed.R.Civ.P. 41\(a\)\(1\)](#) and (c);

3. All parties are to bear their own attorneys' fees and costs; and

4. The Court retains jurisdiction to enforce the terms of the Confidential Settlement Agreement, Mutual Release and Covenant Not to Sue By and Between Adobe Systems Incorporated and Macromedia, Inc. of July 17, 2002.

ORDER

PURSUANT TO STIPULATION, this matter is hereby dismissed with prejudice, with all parties to bear their own attorneys' fees and costs. The Court retains jurisdiction to enforce the terms of the Confidential Settlement Agreement, Mutual Release and Covenant Not to Sue By and Between Adobe Systems Incorporated and Macromedia, Inc. of July 17, 2002.

IT IS SO ORDERED.
